

CSMUN 2026

Background Guide

Agenda: *Examining the Impact of Foreign Military Intervention and Proxy Warfare as its Complex, on International Peace and Security with light on repercussions faced in events from the recent past.*

Letter from the Executive Board

Dear Delegates!

We are very pleased to welcome you to the simulation of the UNGA: DISEC at CSMUN 2026. It will be an honor to serve as your Executive Board for the duration of the conference. This Background Guide is designed to give you an insight into the case at hand. Please refer to it carefully. Remember, a thorough understanding of the problem is the first step to solving it.

However, bear in mind that this Background Guide is in no way exhaustive and is only meant to provide you with enough background information to establish a platform for beginning the research. Delegates are highly recommended to do a good amount of research beyond what is covered in the Guide. The guide cannot be used as proof during the committee proceedings under any circumstances.

Finally, we would like to wish you luck in your preparation. In case you have any questions, procedural or otherwise, please feel free to direct them to any member of the Executive Board and we will get back to you as soon as possible. Please do not hesitate to contact us with any queries or concerns. We expect all delegates to be well-versed with the various nuances of the agenda, and geared up for an intense debate, deliberations, and great fun.

Looking forward to meeting you at the conference!

Warm regards,

Joel Cherian
Chairperson

Pranav Reddy
Co-Chairperson

Important Points to Remember

A few aspects that delegates should keep in mind while preparing:

1. Procedure: The purpose of putting in procedural rules in any committee is to ensure a more organized and efficient debate. The committee will follow the UNA-USA Rules of Procedure. Although the Executive Board shall be fairly strict with the Rules of Procedure, the discussion of the agenda will be the main priority. So, delegates are advised not to restrict their statements due to hesitation regarding procedure.
2. Foreign Policy: Following the foreign policy of one's country is the most important aspect of a Model UN Conference. This is what essentially differentiates a Model UN from other debating formats. To violate one's foreign policy without adequate reason is one of the worst mistakes a delegate can make.
3. Role of the Executive Board: The Executive Board is appointed to facilitate debate. The committee shall decide the direction and flow of debate. The delegates are the ones who constitute the committee and hence must be uninhibited while presenting their opinions/stance on any issue. However, the Executive Board may put forward questions and/or ask for clarifications at all points of time to further debate and test participants.
4. Nature of Source/Evidence: This Background Guide is meant solely for research purposes and must not be cited as evidence to substantiate statements made during the conference. Evidence or proof for substantiating statements made during formal debate is acceptable from the following sources:
 - a. United Nations: Documents and findings by the United Nations or any related UN body is held as a credible proof to support a claim or argument. Multilateral Organizations: Documents from international organizations like OIC, NAFTA, SAARC, BRICS, EU, ASEAN, the International Court of Justice, etc. may also be presented as credible sources of information.
 - b. Government Reports: These reports can be used in a similar way as the State Operated News Agencies reports and can, in all circumstances, be denied by another country.
 - c. News Sources:
 1. Reuters: Any Reuters article that clearly makes mention of the fact or is in contradiction of the fact being stated by a delegate in council.
 2. State operated News Agencies: These reports can be used in the support of or against the State that owns the News Agency. These reports, if credible or substantial enough, can be used in support of or against any country as such but in that situation, may be denied by any other country in the council. Some examples are – RIA Novosti (Russian Federation), Xinhua News Agency (People's Republic of China), etc.

****Please Note: Reports from NGOs working with UNESCO, UNICEF and other UN bodies will be accepted. Under no circumstances will sources like Wikipedia, or newspapers like the Guardian, Times of India, etc. be accepted. However, notwithstanding the criteria for acceptance of sources and evidence, delegates are still free to quote/cite from any source as they deem fit as a part of their statements.*

Introduction to the Committee

The United Nations General Assembly (UNGA) is one of the six principal organs of the United Nations -its main deliberative, policy-making, and representative body. The First Committee of the General Assembly is the Disarmament and International Security Committee (DISEC).

DISEC considers all matters within the scope of the UN Charter relating to disarmament, global threats to peace, and the regulation of armaments. It works in cooperation with the UN Disarmament Commission and the Geneva-based Conference on Disarmament. It is the only Main Committee entitled to verbatim records coverage.

The Mandate of DISEC

The committee considers all disarmament and international security matters within the scope of the Charter or relating to the powers and functions of any other organ of the United Nations; the general principles of cooperation in the maintenance of international peace and security, as well as principles governing disarmament and the regulation of armaments; promotion of cooperative arrangements and measures aimed at strengthening stability through lower levels of armaments. The Committee works in close cooperation with the United Nations Disarmament Commission and the Geneva-based Conference on Disarmament. It is the only Main Committee of the General Assembly entitled to verbatim records coverage.

How DISEC Works in Practice

Mechanism	Description	Significance
Sessions	Meets annually, October–November, during the UNGA session.	Allows annual review as situations evolve.
Membership	All 193 UN Member States; each holds one equal vote.	Amplifies the voice of the Global South.
Decision-Making	Simple majority for most; two-thirds for important questions. No veto.	No single state can block a resolution.
Resolutions	Forwarded to the UNGA plenary for final adoption.	Adds a layer of legitimacy.
Working Papers	Circulated before formal resolutions to build coalitions.	Where real diplomacy occurs.
Historical Impact	CTBT, Ottawa Treaty, Arms Trade Treaty, TPNW negotiations.	Long-term significance of committee work.

Deconstruction of the Agenda: Key Terms

1. Foreign Military Intervention

Foreign military intervention occurs when one state deploys military forces -soldiers, aircraft, missiles, advisors, cyber units, or private contractors -into another state without unambiguous invitation, or in a manner contested by the international community.

Interventions exist along a spectrum: from full-scale invasion (Russia's 2022 invasion of Ukraine) to limited strikes, advisory missions, and covert operations. Each point on this spectrum raises distinct legal and political questions.

The Core Tension in the UN Charter

Article 2(4) - Sovereignty	Article 51 -Self-Defence
Prohibits the use or threat of force against the territorial integrity or political independence of any state. This is the cornerstone of international law and the Westphalian system.	Preserves the inherent right of individual or collective self-defence if an armed attack occurs, pending Security Council action. States CAN use military force in response -but threshold and proportionality requirements are contested.

States frequently invoke Article 51 to justify interventions that others characterise as violations of Article 2(4). Russia justified its actions in Ukraine on grounds of protecting Russian-speaking populations and preventing NATO expansion; the Western world condemned it as a clear sovereignty violation. Both sides cited international law -and this ambiguity is precisely what makes this topic vital for DISEC.

Typology of Foreign Military Intervention

- **Direct Invasion:** A state deploys uniformed forces to seize territory or overthrow a government. Example: Russia's 2022 invasion of Ukraine.
- **Invited Intervention:** A state intervenes at the formal request of a recognised government. Example: French forces in Mali under Operation Barkhane (2013–2022).
- **Humanitarian Intervention:** A state or coalition intervenes without Security Council authorisation to protect civilians. Example: NATO's 1999 Kosovo intervention.
- **Counterterrorism Operations:** Forces deployed into another state's territory to pursue non-state armed groups, often without host-state consent. Example: US drone strikes in Pakistan, Somalia, Yemen.
- **Military Advisory Missions:** Sending advisors, trainers, or intelligence personnel to support a foreign government or armed group. The line between advisory and combat roles is frequently blurred.

The Responsibility to Protect (R2P)

Adopted at the 2005 World Summit, R2P attempts to codify when the international community may intervene to protect civilians from mass atrocities. Its three pillars are:

- **Pillar One:** Every state has the responsibility to protect its own population from genocide, war crimes, ethnic cleansing, and crimes against humanity.
- **Pillar Two:** The international community must assist states in fulfilling this obligation.
- **Pillar Three:** If a state manifestly fails to protect its population, the international community has the responsibility to take collective action -including, as a last resort, force -through the Security Council.

R2P remains highly controversial. Critics, particularly from the Global South, argue that NATO's Libya intervention in 2011 -which expanded well beyond its humanitarian mandate into effective regime change -exposed R2P as a potential pretext for Western interventionism. Russia and China have consistently blocked R2P-based actions in the Security Council.

2. Proxy Warfare and Its Complex

Proxy warfare occurs when powerful states fight each other indirectly by supporting, funding, training, or arming a third party -a government, rebel group, militia, or non-state actor -to fight on their behalf. The word 'complex' in the agenda reflects that this has grown into an interconnected ecosystem far beyond simple arms supply.

Components of the Modern Proxy War Complex

- **Arms Transfers:** A sponsoring state supplies weapons -rifles, anti-tank missiles, artillery, air defence systems -to an allied non-state or state actor. The Arms Trade Treaty (2014) is the primary regulatory framework, but it is weak and excludes major producers.
- **Financial Support:** Providing money, salaries, or economic resources to sustain proxy forces. This may occur covertly through shell companies, offshore accounts, or cryptocurrency.
- **Intelligence Sharing:** Providing real-time battlefield intelligence, satellite imagery, and signals intelligence. The US and UK provision of intelligence to Ukraine is a prominent example.
- **Private Military Companies (PMCs):** Private businesses providing combat, logistics, and training for hire, creating deniability for sponsoring states. Russia's Wagner Group (restructured as Africa Corps) is the most prominent example, operating across Syria, Libya, Mali, CAR, Sudan, and Mozambique.
- **Drone Technology:** Proliferation of armed UAVs allows precision strikes and reconnaissance at low cost. Iran's supply of Shahed drones to Russia, and Turkey's supply of Bayraktar drones to Ukraine, exemplify this dimension.
- **Cyber Operations:** State-sponsored hacking groups disrupt an enemy's infrastructure -power grids, financial systems, military command networks -while preserving plausible deniability. Russia's cyber operations against Ukraine began years before the 2022 invasion.
- **Disinformation & Information Warfare:** State-sponsored campaigns to destabilise governments, polarise populations, undermine democratic processes, and erode trust in international institutions. Russian operations in Europe and Chinese influence campaigns globally are well documented.
- **Economic Coercion:** Using trade, sanctions, debt, and commodity dependency as tools of conflict. Russia's weaponisation of gas supplies to Europe is a key example.
- **Diplomatic Protection:** Shielding a proxy from international accountability through Security Council vetoes, blocking ICC investigations, or providing diplomatic cover.

These elements form an interconnected system that makes modern proxy conflicts far harder to monitor, regulate, or terminate than traditional proxy wars. A single drone strike may involve technology from Country A, financing from Country B, a private company in Country C, operated by forces loyal to Country D. This attribution problem is a central challenge for DISEC.

3. International Peace and Security

International peace and security -the foundational mission of the UN -encompasses multiple dimensions beyond the simple absence of armed conflict.

- **Negative Peace:** The absence of direct armed conflict between states.
- **Positive Peace:** The presence of stable, just institutions and equitable development that prevent conflict.
- **Human Security:** Protection of individuals from violence, disease, hunger, and economic instability.
- **Institutional Security:** The integrity of the rules, norms, and organisations governing inter-state relations. Impunity erodes the entire global order.

Foreign military interventions and proxy wars undermine these dimensions by prolonging conflicts, spreading weapons beyond their intended recipients, blocking diplomatic solutions, destabilising entire regions through refugee flows and economic disruption, eroding international law, and generating humanitarian catastrophes -from Sudan to Yemen to Myanmar.

Historical Context and the Recent Past

2014: The Seeds of Modern Proxy War -Crimea and the Donbas

In February 2014, Ukraine's pro-Russian President Yanukovich was ousted following months of Euromaidan protests. Russia's response set the template for the decade of conflict that followed.

In March 2014, Russia annexed the Crimean Peninsula following a hastily arranged referendum condemned as illegitimate by 100 UN member states in General Assembly Resolution 68/262. Russian troops -initially in unmarked uniforms, nicknamed 'little green men' -secured strategic sites before the vote. Crimea's annexation was the first forcible seizure of European territory since World War II.

Simultaneously, in eastern Ukraine's Donbas region, pro-Russian separatists seized government buildings with covert Russian military, intelligence, and material support. The July 2014 MH17 disaster -in which a civilian airliner was shot down, killing all 298 aboard -demonstrated the lethal consequences of advanced weapons proliferating to proxy forces. A Dutch-led Joint Investigation Team concluded the aircraft was downed by a Russian military system transported from Russia into Ukraine.

Over eight years (2014–2022), the Donbas conflict killed over 14,000 people, creating a 'frozen conflict' that kept Ukraine destabilised and ineligible for NATO membership -a condition that suited Russian strategic interests. This frozen conflict template has since been replicated in Georgia, Moldova, and the South Caucasus.

2022: The Full-Scale Invasion

On 24 February 2022, Russia launched a full-scale invasion of Ukraine -one of the largest military operations in Europe since World War II. Justifications included protecting Russian-speaking populations, 'denazification' of the Ukrainian government, and opposition to potential NATO membership.

The UNGA condemned the invasion in Emergency Special Session Resolution ES-11/1, with 141 states in favour, 5 against, and 35 abstaining. The International Court of Justice ordered Russia to suspend military operations. Both orders were ignored.

Ukraine's resistance exceeded initial expectations, forcing Russian withdrawal from the Kyiv region by April 2022. The conflict settled into a grinding attritional war in eastern and southern Ukraine characterised by artillery battles, drone warfare, and systematic missile strikes on civilian infrastructure. The ICC issued arrest warrants for President Putin and Children's Rights Commissioner Maria Lvova-Belova in March 2023 for the alleged deportation of Ukrainian children -an unprecedented step against a sitting P5 head of state.

2023–2024: The Western Proxy Dynamic and Global Fallout

As the conflict became a prolonged war of attrition, Western nations -declining to deploy combat troops -provided extraordinary material support to Ukraine, raising questions about the boundary between supporting self-defence and proxy warfare:

- **Arms Transfers:** The US, UK, Germany, France, Poland, and dozens of others transferred artillery systems, battle tanks (Leopard 2, Challenger 2, Abrams), air defence batteries (PATRIOT, NASAMS), and long-range missiles (ATACMS, Storm Shadow).
- **Financial Support:** The EU and G7 provided tens of billions in direct assistance, and agreed to use proceeds from approximately \$300 billion in frozen Russian sovereign assets to fund Ukrainian reconstruction.
- **Intelligence Sharing:** Western agencies provided real-time battlefield intelligence that contributed directly to significant Ukrainian military successes.
- **North Korea's involvement:** By late 2023, confirmed reports emerged that North Korea was supplying Russia with artillery ammunition and ballistic missiles -a cobelligerent role that drew in a new state actor, illustrating how proxy dynamics can expand.

The Global Fallout (2022–2024)

Repercussion	Description & Scale	Most Affected Regions
Refugee & Displacement Crises	Russia's invasion displaced over 8 million Ukrainians internally and forced over 6 million to flee abroad -the largest European refugee crisis since WWII. Sudan's 2023 civil war created over 10 million displaced persons by 2025.	Europe, North Africa, Middle East, Sub-Saharan Africa
Food Insecurity & Grain Crisis	Ukraine and Russia supply ~30% of global wheat, 20% of maize, and over 70% of sunflower oil. The 2022 invasion caused grain prices to spike 30–50%. Collapse of the Black Sea Grain Initiative in 2023 renewed these pressures.	North Africa, Horn of Africa, South Asia, Middle East
Energy Price Crises	Russia's weaponisation of gas supplies caused energy prices to soar across Europe. European nations spent over €800 billion to secure alternatives, with ripple effects reaching Pakistan and beyond.	Europe, South Asia, Southeast Asia
Global Inflation	Supply chain disruptions drove global inflation to multi-decade highs of 8–10% in major economies in 2022–2023. Developing nations with weaker	Global -worst in Sub-Saharan Africa and South Asia

	currencies suffered disproportionately, some experiencing inflation exceeding 30%.	
Resource Competition & PMC Exploitation	In the Sahel, PMCs secured access to gold, uranium, cobalt, and lithium mining concessions in exchange for security services, extracting wealth with minimal benefit to local populations.	Sub-Saharan Africa, particularly the Sahel
Development Setbacks	The World Bank estimated the Ukraine conflict alone pushed tens of millions back below the poverty line through food and energy price shocks. Infrastructure destruction in conflict zones sets back development by decades.	Global South, food-import-dependent nations

2025–2026: New Theatres and the Iran War

The African Sahel: A New Proxy Battleground

A cascade of military coups between 2020 and 2023 in Mali, Burkina Faso, and Niger created governments that expelled French forces and invited Russian-linked PMCs. Africa Corps (formerly Wagner Group) now provides direct combat and security services in exchange for mining concessions -a new resource-for-security barter model. The Sahel holds enormous reserves of uranium, gold, cobalt, and lithium critical to the global energy transition, making it a theatre of intense external power competition.

Sudan descended into catastrophic civil war in April 2023. By 2025, over 150,000 people had died and roughly 21 million faced acute hunger, with famine spreading across Darfur and Kordofan. A 2026 Human Rights Watch investigation found an Abu Dhabi-based security firm had deployed hundreds of Colombian contractors to fight alongside the Rapid Support Forces (RSF). The US Treasury sanctioned individuals and firms for this deployment. Sudan has formally accused Ethiopia and the UAE of orchestrating drone attacks on Khartoum -accusations both deny -deepening fears of a wider regional proxy conflict.

In April 2026, Kidal -the Tuareg stronghold seized by Wagner/Africa Corps and the Malian army in 2023 -fell to a coalition of Tuareg fighters and al-Qaeda-affiliated JNIM. Africa Corps negotiated safe passage rather than fight, undermining Russian credibility across the Sahel. The lesson: PMC-for-resources arrangements assume the sponsor retains leverage; Kidal demonstrated the opposite risk.

The 2026 Iran War: The Agenda's Defining Case Study

If one event captures everything this agenda is about, it is the 2026 Iran war. It shows decades of proxy relationships collapsing into direct large-scale intervention almost overnight.

Iran and Israel had been locked in proxy conflict since 1985, with Iran building a network of allied forces -Hezbollah, Houthi fighters in Yemen, Shiite militias in Iraq, armed groups in Syria -through its Quds Force under the banner of an 'axis of resistance.' For decades this was deniable, drawn-out proxy warfare.

A first direct collision came in June 2025's Twelve-Day War, when Israel struck Iranian military and nuclear sites; Iran retaliated with over 550 ballistic missiles and more than 1,000 drones. The US struck three Iranian nuclear facilities before a ceasefire held. That proved only a preview.

From 28 February to 17 June 2026, the United States and Israel were at open war with Iran following joint airstrikes that killed senior Iranian officials, most notably Supreme Leader Ali Khamenei, in an operation codenamed Operation Epic Fury. Iran retaliated with missiles and drones against Israel, US-aligned Arab states, and US bases across the region, and effectively closed the Strait of Hormuz.

This is the critical distinction for delegates: unlike decades of arms transfers and militia funding, this was uniformed US and Israeli airpower directly striking a sovereign state's leadership -an unambiguous Article 2(4) case. Washington and Jerusalem defended it as anticipatory self-defence under Article 51, citing Iran's nuclear programme advancement. Iran condemned it as a Charter violation.

The closure of the Strait of Hormuz -through which roughly a fifth of global oil consumption passes -produced one of the most significant energy supply shocks in modern history. The UAE, Saudi Arabia, and Kuwait launched retaliatory strikes on Iranian positions. US Central Command reported striking over 11,000 targets inside Iran.

A ceasefire was agreed in early April, with a memorandum of understanding signed by both presidents on 17 June 2026, though the underlying rivalry remains unresolved. Iran's three principal nuclear facilities -Natanz, Fordow, and Isfahan -were all heavily targeted, and Hezbollah emerged significantly weakened. Iran's regime survived and can now claim domestically to have withstood direct confrontation with both Israel and the United States.

Ukraine: Peace Process Status (Mid-2026)

Trilateral talks between Russia, the US, and Ukraine were held in Abu Dhabi (January–February 2026) and Geneva (mid-February 2026), covering ceasefire monitoring and for the first time placing the territorial question on the table. However, the political track remained stuck, with Russian envoys insisting on full control of the Donbas.

President Zelenskyy stated any agreement requiring unilateral Ukrainian withdrawal from occupied Donetsk province would require a national referendum. In May 2026, Putin expressed willingness to meet Zelenskyy after a final deal, and both sides held a three-day ceasefire and prisoner exchange. By early June, the Kremlin rejected a renewed call for talks, demanding Kyiv withdraw from occupied territory and abandon its NATO bid. Russian attacks intensified again alongside a large Ukrainian drone strike on St. Petersburg.

As of mid-2026, this is a stalemated war trending toward fragile ceasefire, blocked on territorial questions and the durability of Western security guarantees.

International Legal Framework

Understanding the legal tools available -and their limitations -is essential for crafting effective resolutions.

The UN Charter

Provision	What It Says	Relevance to the Agenda
Article 2(4)	Prohibits use or threat of force against territorial integrity or political independence of any state.	Primary legal prohibition on foreign military intervention. Russia's invasion violated this unambiguously; covert proxy warfare is harder to characterise.
Article 51	Preserves inherent right of individual and collective self-defence following an armed attack, pending Security Council action.	Ukraine's legal basis for requesting Western arms. The most frequently invoked -and abused -justification for intervention.
Chapter VII (Arts. 39–51)	Empowers the Security Council to determine threats to peace and authorise enforcement measures, including military force.	Paralysed in the Ukraine case by Russia's veto. The P5 veto is the central enforcement gap DISEC must address.
Article 2(1)	Affirms the sovereign equality of all UN member states.	Foundation for Global South arguments that proxy warfare and 'humanitarian' interventions violate sovereign equality.
Chapter VI (Arts. 33–38)	Calls on parties to disputes to seek pacific settlement through negotiation, mediation, arbitration, and judicial settlement.	Relevant to resolutions calling for diplomatic solutions and ceasefire negotiations.

The Problem of the P5 Veto

The Security Council's five permanent members each hold veto power over binding resolutions. Since Russia's 2022 invasion, Russia has vetoed every resolution characterising its actions as illegal. China has frequently provided diplomatic cover through abstentions. The result: the international community's primary enforcement mechanism is paralysed precisely when it is most needed.

The Uniting for Peace Resolution (GA Resolution 377, 1950) offers a partial workaround -when the Security Council is deadlocked, the General Assembly can convene an Emergency Special Session to recommend

collective action. This was invoked for Ukraine (resulting in Resolution ES-11/1), but GA recommendations remain non-binding.

Geneva Conventions and IHL Gaps

The Geneva Conventions (1949) and their Additional Protocols constitute International Humanitarian Law. They protect civilians, wounded soldiers, prisoners of war, and medical personnel. However, critical gaps exist for modern conflicts:

- **PMCs and Mercenaries:** The legal status of PMC fighters is deeply contested. The 1989 Convention Against Mercenaries has been ratified by very few states. The Montreux Document (2008) articulates existing IHL obligations for PMCs but is non-binding.
- **Cyber Operations:** IHL has no clear rules governing cyber attacks on civilian infrastructure. The Tallinn Manual attempts to apply existing principles but has no binding legal status.
- **Drone Warfare:** Legal frameworks governing drone strikes in non-declared war zones -standards of evidence, proportionality, civilian harm attribution -remain deeply contested.
- **Non-State Armed Groups:** Proxy forces are not signatories to the Geneva Conventions. Common Article 3 and Additional Protocol II impose minimum standards, but enforcement against non-state actors is extremely difficult.

Other Relevant Frameworks

- **Arms Trade Treaty (2014):** Regulates international conventional weapons trade and requires human rights impact assessments. However, Russia, China, and (since 2019) the United States are not full parties, and enforcement is weak.
- **UN General Assembly Resolution 3314 (1974):** Defines 'aggression' under international law, including a list of qualifying acts -relevant to characterising Russia's actions in Ukraine.
- **Montreux Document (2008):** Non-binding 'good practices' document on PMC obligations. Signed by 58 states but lacks any enforcement mechanism.
- **Ottawa Treaty (1997):** Banned anti-personnel landmines but not ratified by Russia, US, China, or India. The Ukraine conflict has seen widespread landmine use, demonstrating the limits of treaties that exclude major powers.
- **International Convention Against Mercenaries (1989):** Criminalises recruitment, use, financing, and training of mercenaries. However, defining a 'mercenary' in law is notoriously difficult -PMC fighters deliberately structure their arrangements to avoid meeting the legal definition -and major military powers have not ratified this convention.
- **UN Security Council Resolutions on PMCs:** Various country-specific resolutions have addressed PMC activity -for example, arms embargo resolutions for Libya that Wagner Group violated -but there is no comprehensive global framework governing PMC registration, conduct, or accountability.

The Attribution Problem in International Law

One of the most significant legal challenges posed by modern proxy warfare is the problem of attribution -determining which state is legally responsible for the actions of a non-state armed group or PMC it supports. This matters enormously because accountability under international law typically requires establishing a link between a state and the wrongful act.

The International Court of Justice has articulated two competing standards for this assessment:

- **Effective Control (Nicaragua v. United States, 1986):** The ICJ held that for a state to be responsible for the acts of an armed group, it must have exercised 'effective control' over the specific operations in

which violations occurred -a very high threshold. Under this standard, proving Russian responsibility for Donbas separatist atrocities before 2022 would have required evidence of direct operational control over each specific act.

- **Overall Control (ICTY, Tadic Case, 1999):** The International Criminal Tribunal for the former Yugoslavia adopted a lower threshold: 'overall control' over a group, including financing, equipping, training, and directing general operations, is sufficient for state responsibility. This broader standard better captures modern proxy relationships, but it has not been definitively adopted by the ICJ.

The Sudan case exemplifies this challenge most sharply. An Abu Dhabi-based firm recruits Colombian contractors as drone operators and snipers serving the RSF in Darfur. The UAE denies involvement. Colombia's government did not sanction the deployment. The RSF is not a signatory to the Geneva Conventions. The result: hundreds of civilians are killed, and no state is clearly legally responsible under existing frameworks. This attribution vacuum is the central structural problem DISEC must address.

Emerging Technologies and the Law

The speed of technological development has significantly outpaced the development of corresponding legal frameworks. Three areas are particularly acute:

Autonomous Weapons Systems

Lethal Autonomous Weapons Systems (LAWS) -sometimes referred to as 'killer robots' -are weapons capable of selecting and engaging targets without meaningful human control. The prospect of AI-driven warfare raises profound questions under IHL: Can an autonomous system make the legally required judgements of distinction (between combatant and civilian) and proportionality (whether collateral damage is excessive relative to anticipated military advantage)? If an autonomous system commits a war crime, who is responsible -the programmer, the military commander, the state?

The Convention on Certain Conventional Weapons (CCW) has held discussions on LAWS since 2014 but has not produced binding rules. A growing number of states -including Austria, Brazil, Chile, and Mexico -have called for a pre-emptive prohibition treaty. Major military powers including the US, Russia, China, and the UK resist binding restrictions, preferring national policy statements. As AI systems are increasingly integrated into proxy warfare toolkits (autonomous drones were used in the Libya conflict as early as 2021), the absence of a legal framework becomes more dangerous.

Satellite Technology and Space

Commercial satellite imagery and services have become integral to modern warfare. Ukraine's use of Starlink for communications and battlefield coordination, and the extensive use of commercial satellite imagery by both sides, has blurred the traditional distinction between military and civilian space assets. This creates new questions about what constitutes a legitimate military target, and whether attacks on civilian satellite infrastructure would violate IHL. The Outer Space Treaty (1967) prohibits nuclear weapons in space but contains no rules governing conventional military activities in or dependent upon space.

Bloc Positions

The positions below are broad generalisations intended to provide delegates with a starting point for research. Delegates are strongly encouraged to examine their country's specific policies, strategic interests, and official statements.

Bloc 1: Western Allies / NATO Member States

Examples: United States, United Kingdom, France, Germany, Canada, Poland, Japan, South Korea.

General Positions:

View Russia's invasion as a clear violation of international law and Ukrainian sovereignty.

Consider military and financial assistance to Ukraine as legitimate collective self-defence.

Support accountability mechanisms, including investigations into war crimes and regulation of emerging security challenges such as cyber warfare and private military companies.

Bloc 2: Russian / Chinese Sphere of Influence

Examples: Russia, China, Belarus, Iran, North Korea and select Central Asian states.

General Positions:

Emphasise state sovereignty, non-interference, and opposition to externally imposed regime change.

Criticise Western interventions in Iraq, Libya, and Afghanistan as precedents undermining international norms.

Advocate for a multipolar international order and question Western dominance within global institutions.

Bloc 3: Global South / Non-Aligned States

Examples: India, Brazil, South Africa, Indonesia, Egypt, Mexico and many African Union and ASEAN member states.

General Positions:

Prioritise diplomacy, negotiated settlements, and de-escalation.

Highlight the disproportionate impact of conflicts on developing economies through food insecurity, inflation, and energy disruptions.

Support stronger regulation of arms proliferation while advocating for broader reforms in global governance structures.

Questions a Resolution Must Answer (QARMAs)

These are the key policy questions delegates should address in working papers and draft resolutions.

QARMA 1: Regulating Private Military Companies

How can the international community close the accountability gap that PMCs exploit? The current framework -primarily the voluntary Montreux Document -has proven wholly inadequate. The Sudan case alone illustrates why: a Gulf-based firm recruiting Latin American contractors to fight in an African civil war, operating across at least four national jurisdictions, with no single state clearly responsible for the consequences.

Delegates should consider: a mandatory international registration system requiring PMCs to disclose beneficial ownership, state affiliations, personnel numbers, and weapons carried; legal liability frameworks establishing the responsibility of sponsoring states for PMC conduct; a UN-level licensing body with minimum conduct standards and authority to revoke licences; converting the Montreux Document from voluntary guidelines into a binding treaty with monitoring and sanctions; and mechanisms for criminal prosecution of individual PMC personnel for IHL violations, including through the ICC or ad hoc tribunals.

QARMA 2: Controlling Arms Flows to Proxy Groups

How can weapons flows to proxies be limited without undermining legitimate self-defence? This is perhaps the most politically contested QARMA because the same mechanism -arms transfers -is simultaneously how the international community helps Ukraine defend itself and how Iran sustains Hezbollah or Russia sustains Sahel proxy forces.

Delegates should consider: strengthening and universalising the Arms Trade Treaty, including developing credible mechanisms to bring Russia, China, and the United States into full compliance; more rigorous end-user certification requirements and post-delivery verification; a standing UN body with a mandate to track, document, and publicly report illicit arms flows to non-state actors; new specific frameworks for the categories of weapons most associated with proxy warfare -armed UAVs, anti-tank systems, air defence missiles, and emerging autonomous systems; and whether the framework should distinguish between arms transfers to recognised governments and to non-state actors, and if so, on what basis.

QARMA 3: Addressing Global Economic Consequences

How should the world respond to the food, energy, and inflation fallout of conflicts that developing nations did not cause? This is the dimension of the agenda where the Global South bloc has the strongest moral argument. Nations that produce no weapons, have no role in the Russia-Ukraine conflict or the Iran war, and contribute minimally to global carbon emissions nonetheless face famine, debt default, and energy poverty as direct consequences of these wars.

Delegates should consider: an automatic UN humanitarian relief mechanism triggered by conflict-induced commodity shocks, funded by conflict-responsible parties; financial instruments -commodity price insurance, emergency IMF liquidity facilities -to shield uninvolved developing nations from externally caused crises; establishing the legal principle that states initiating armed conflict owe obligations not only to their direct adversaries but to third states harmed by economic spillover; specific mechanisms to protect and sustain critical food and energy trade routes (building on lessons from the Black Sea Grain Initiative's failure); and long-term supply chain resilience strategies to reduce Global South dependency on conflict-prone supply corridors.

QARMA 4: Updating International Humanitarian Law

How should IHL evolve to cover cyber operations, drones, PMCs, and AI-enabled weapons? The Geneva Conventions were written for conflicts between identifiable state armies on defined battlefields. Modern proxy warfare increasingly involves none of these features.

Delegates should consider: a new binding international treaty specifically governing cyber operations affecting civilian infrastructure, establishing clear thresholds for what constitutes an 'armed attack' in cyberspace and what response is proportionate; attribution mechanisms -potentially involving a neutral international technical body -to establish state responsibility for cyber operations; clearer IHL rules on autonomous weapons, including requirements for meaningful human control over lethal targeting decisions; mechanisms for extending IHL obligations to non-state actors receiving state support (beyond the inadequate existing provisions of Common Article 3 and Additional Protocol II); and whether drone warfare should be subject to a specific treaty or whether existing IHL principles can be adequately applied through a binding interpretive document.

QARMA 5: Overcoming Security Council Paralysis

What mechanisms can prevent the P5 veto from blocking responses to clear-cut interventions? The current situation -where Russia can veto every resolution condemning its own aggression, and where the only alternative is non-binding General Assembly recommendations -represents a fundamental failure of the collective security architecture.

Delegates should consider: strengthening the Uniting for Peace mechanism by establishing clearer procedural triggers and timelines, and exploring whether GA recommendations can be made more politically authoritative even if not legally binding; the 'ACT Code of Conduct' and similar proposals for voluntary P5 restraint in situations of mass atrocities; non-enforcement accountability tools as a package -systematic documentation of violations, naming-and-shaming resolutions, targeted individual sanctions through alternative mechanisms, and maximising ICC jurisdiction; the role of regional bodies (the African Union, ASEAN, the Arab League) in providing a parallel accountability track; and longer-term structural reforms including expanding the Security Council to include more permanent or semi-permanent members from the Global South, which requires Charter amendment and faces significant political obstacles.

QARMA 6: Protecting Civilians and Refugees

How can populations directly harmed by these conflicts be better supported? Proxy wars and foreign interventions have produced the worst global displacement crisis since World War II -over 117 million forcibly displaced people worldwide as of 2025, the majority caused or significantly worsened by the conflicts examined in this guide.

Delegates should consider: establishing clear legal and financial obligations for intervening states regarding civilian harm caused by their actions or those of their proxies; guaranteed minimum humanitarian access standards applicable even in conflict zones with multiple armed actors, with mechanisms to enforce compliance; scaling the 1951 Refugee Convention's protections to the realities of proxy-war displacement, which often involves internally displaced persons who do not cross borders and are therefore excluded from refugee protections; specific protections for children against recruitment into armed groups, deployment as combatants, forced displacement, and the psychological harm of growing up in conflict zones; and addressing the specific vulnerability of women and girls in conflict zones, where proxy wars have been associated with systematic sexual violence used as a weapon of war.